

VCU313509 Asman, Bruce E. et al vs. Ponce, Cipriano et al

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-03

Motion: Plaintiffs' Motion to Consolidate

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Re: Asman, Bruce E. et al vs. Ponce, Cipriano et al

Case No.: VCU313509

Date: September 3, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Plaintiffs' Motion to Consolidate

Tentative Ruling: To continue this matter to September 10, 2026; 8:30 am; D1 and to order compliance with the procedural requirements of consolidation prior to consolidation as indicated herein.

Facts and Analysis

Via this motion, Plaintiffs seek to consolidate this matter VCU313509 with VCU332655.

VCU313509, as it stands, involves causes of action for quiet title and easements involving 13930 Idaho Ave Oroshi, CA 93647 ("Subject Property"). The Court notes a pending motion to amend the complaint to add causes of action for negligence, fraud and failure to disclose involving the Subject Property. Defendants Ciprano Ponce and Sylvia Ponce are alleged claim that the garage in dispute belongs to another parcel owned by Defendants.

VCU332655 involves causes of action for negligence and misrepresentation against Defendants Bloom Group, Inc. and Alma Rosa Jimenez (alleged to have represented Plaintiffs regarding the purchase of the Subject Property) and Defendants Melson Realty, Inc. and Maxim Leo Lisitsyn (alleged to have represented the sellers of the Subject Property.)

Pursuant to California Code of Civil Procedure section 1048, subd. (a), "[w]hen actions involving a common question of law or fact are pending before the court...it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

"A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions." (Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 86.) "Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only, where the two actions remain otherwise separate; and a complete consolidation or consolidation for all purposes, where the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment." (Hamilton v. Asbestos Corp., Ltd. (2000) 22 Cal.4th 1127, 1147.) "Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only." (Id. at 1149.) Consolidation "is a matter committed to the sound discretion of the trial [court]." Fellner v. Steinbaum (1955) 132 Cal.App.2d 509, 511.)

Here, the substantive elements of section 1048(a) appear to be met given the common issues between the matters.

However, the Court will require compliance with the procedural aspects of consolidation prior to ordering consolidation.

Under California Rule of Court 3.300, a notice of related case must be filed in both VCU313509 and VCU332655.

No notice of related case has been filed in either VCU313509 or VCU332655. The Court orders Plaintiffs to file the notice of related case in both VCU313509 and VCU332655.

Under California Rules of Court Rule 3.350(a), the notice of motion to consolidate must be filed in each case sought to be designated.

While the notice was filed in VCU313509, no notice of this motion was filed in VCU332655. The Court orders Plaintiffs to file the notice of motion in VCU332655.

Finally, California Rule of Court, Rule 3.350(c) requires a proposed order to be filed in each case sought to be consolidated. No proposed order has been filed in either VCU313509 or VCU332655. The Court orders Plaintiffs to a proposed order in both VCU313509 and VCU332655.

Upon compliance with the procedural requirements, the Court intends to grant consolidation of these matters for all purposes.

The Court, therefore, continues this matter to September 10, 2026; 8:30 am; D1 and orders Plaintiffs to file:

the notice of related cases in both VCU313509 and VCU332655;

the notice of this motion in VCU332655; and

the proposed order in both VCU313509 and VCU332655.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.